

Contract Procedure

Project Title: Contract Review and Signing Procedure at the YMCA of Greater San Francisco
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1. Overview

This Contract Procedure describes the process for receiving, reviewing, and signing contracts at the YMCA of San Francisco. The objective is to ensure that all contracts are thoroughly reviewed for risk and liability, comply with YMCA policies, and are signed by an authorized signatory in a timely manner.

2. Procedure

2.1 Contract Submission:

- YGSF has standard contract templates that must be used for high-risk services and agreements, including but not limited to youth program services, professional services (consulting, financial, legal), other independent contractors services, transportation services, medical screening services, and services where we are giving another party access to our staff and/or members. Contract templates can be found on the YGSF Risk and Legal Department SharePoint page: [Risk Management - Contracts: Review/Signature Requests - All Documents](#).
- For each contract, including Independent Contractor Agreements, there must be a designated staff liaison who is responsible for identifying and vetting the contractor, identifying the appropriate contract template, negotiating and understanding simple business terms, revising business terms, completing contract forms and templates, copyediting and proofreading, submitting the contract to the Legal Department (Business Compliance & Legal Analyst and Associate General Counsel), explaining insurance and indemnity terms to the other party/contractor, and interfacing with the contractor, as needed.
- Staff liaison will coordinate and consult with the Legal Department on contract issues early in the approval process, including but not limited to drafting, negotiation, or insurance issues.
- Staff liaison will submit contracts to Legal Department **via email (not Teams)**, actively engage with and respond to Legal Department, and track their contracts' progress through to execution.

2.2 Review Process:

- Identify the **CONTRACT SUBJECT** and **CONTRACT TYPE** from the list in **Section 12**.
- **For Independent Contractor Agreements (ICAs), the staff liaison shall:**
 - Search for the Contractor in ICA log [Independent Contractor Log 080618.xlsx](#) to determine if they have done business with YGSF in the past; and complete the appropriate ICA template:
 - [Youth Service ICA](#), for youth enrichment programming.
 - [Professional Services ICA](#), for professionally licensed service providers (e.g. medical, therapist, consulting, financial, legal services).

- [Adult Program ICA](#), for adult or all-ages programming or events (e.g. event production, musicians, DJs, entertainers, emcees, auctioneers, unlicensed staff development trainers, photographers).
 - **ICA Addendum**, for renewing youth service, professional service, or adult program ICAs [YMCA Youth Services Addendum 2024.pdf](#), [YMCA Professional and Adult Program Addendum 2024.pdf](#).
- Complete ICA/Addendum;
- Send ICA/Addendum to the contractor for review;
- Obtain the contractor's signature on the ICA/Addendum;
- Obtain the contractor's Certificate of Insurance and Additional Insured Endorsement (see Section 12 for details);
- Complete [ICA Approval Form](#) and obtain Branch ED's signature.
- **For Adult Program ICAs of \$10,000 or less**, *staff shall obtain all external signatures*, then send ICA packet (Approval Form, contractor-signed ICA/Addendum, COI and Endorsement) to Legal Department for internal signatures and filing.
- **For ALL Youth and Professional Service ICAs, AND Adult Program ICAs of \$10,001 or more**, send ICA packet (Approval Form, contractor-signed ICA/Addendum, COI and Endorsement) to Legal Department *for review and execution*.
- If contractor supplies an agreement for services, staff liaison shall inform contractor that we can only execute the YGSF ICA but we can incorporate their agreement by reference as "Exhibit A." Only non-conflicting terms will become part of the contract.
 - Staff liaison must write "Exhibit A" on the contractor supplied agreement and submit it with ICA packet.
- **Grant Agreement supplied by Grantor:**
 - Staff liaison shall ensure that the contract is accurate and complete (e.g. contains correct dates, states our full legal name without abbreviation and the branch name);
 - *Staff liaison shall obtain external signatures*, COI and Endorsement if applicable, and send to Legal Department for internal signatures, review and filing.
- **YGSF Memorandum of Understanding (MOU) Template:**
 - The MOU template can be easily adapted for many contract subjects (see Section 12 below). We recommend that staff liaison consult with Legal Department for guidance before creating a new MOU.
 - Fill in the blanks and update each party's roles then submit the MOU draft to Legal Department for review;
 - Once final draft is approved by Legal Department, staff liaison will send MOU to the other party for review;
 - Obtain the other party's signature;

- Obtain the other party's Certificate of Insurance and Additional Insured Endorsement; and
 - Send contract packet (signed MOU, COI and Endorsement) to Legal Department for review.*
- ***PTA MOU for \$10,000 or less:** *staff liaison can obtain external signatures, then send contract to Legal Department for internal signatures, review and filing.*
- **Alcohol Service Agreement; Bus/Transportation Service Agreement; Bounce House Agreement; and YGSF Insurance and Indemnity Agreement:**
 - Staff liaison shall complete the template and send it to the other party for review;
 - Obtain the other party's signature;
 - Obtain the other party's Certificate of Insurance and Additional Insured Endorsement; and
 - Send contract packet (signed agreement, COI and Endorsement) to Legal Department for review.
- **Internship, Affiliation, or Placement Agreement; School District Service Agreement; Contractor Supplied Agreement:**
 - Staff liaison shall ensure that the contract is accurate and complete (e.g. contains correct dates, states our full legal name without abbreviation and the branch name), and send it, along with COI and Endorsement if applicable, to Legal Department for review and execution.
- **Maintenance Agreement for \$10,000 or less:** staff liaison can obtain internal signatures, then send contract to Legal Department for internal signatures, review and filing.
- **Conference, Hotel, or Venue Rental for \$10,000 or less:** staff liaison can obtain external signatures, then send contract to Legal Department for internal signatures, review, and filing.
- **Property Lease, License, or other Rental Agreement (excluding equipment rental, YGSF Facility Use, and User Group Agreements):** staff liaison can obtain external signatures, then send the contract to the Legal Department for review and final approval to obtain internal signatures, review, and filing.
- **Health/Dental Screening Services**
 - Consult with Legal Department before completing the appropriate screening services template;
 - Staff liaison shall complete the template and send it (and the certification template, only for youth health screenings), to the other party for review;
 - Obtain the other party's signature;

- Obtain the other party's Certificate of Insurance and Additional Insured Endorsement; and
 - Send contract packet (signed agreement, COI and Endorsement, and certification if applicable) to Legal Department for review.
- **Construction Contract:**
 - Staff liaison shall complete the appropriate template and send to the other party for review;
 - Obtain the other party's signature;
 - Obtain the other party's Certificate of Insurance and Additional Insured Endorsement;
 - If contractor supplies an agreement, staff liaison shall inform contractor that we can only execute the YGSF contract but we can incorporate their agreement by reference as "Exhibit A." Only non-conflicting terms will become part of the contract.
 - Staff liaison must write "Exhibit A" on the first page of their terms and submit it with contract packet.
 - Send contract packet to Legal Department *for review and execution*.
 - **Food Service/Catering**
 - **For contracts of \$10,000 or less**, either use **Adult Program ICA (FKA Musicians Auctioneers ICA)** or the contractor supplied agreement and *obtain COI as proof of insurance*.
 - *Staff liaison shall obtain external signatures, Legal Department will obtain internal signatures.*
 - **For contracts of \$10,001 or more:**
 - Complete **YGSF Adult Program ICA (or addendum)**;
 - Send ICA/Addendum to the contractor for review;
 - Obtain the contractor's signature on the ICA/Addendum;
 - Obtain the contractor's Certificate of Insurance *and Additional Insured Endorsement*;
 - Complete ICA Approval Form and obtain Branch ED's signature;
 - Send ICA packet (Approval Form, contractor-signed ICA/Addendum, COI and Endorsement) to Legal Department for review and execution.
- 3. Turnaround Time for Review:** Legal Department will acknowledge receipt of contracts, including ICA packets, within 1 business day or receipt.

3.1 Legal Department will review each contract within 5 business days of receipt, unless more time is requested, and either approve or advise the staff liaison regarding next steps for an incomplete contract.

3.2 Staff liaison must allow more than 5 days for review and approval when a contract requires major revision or drafting and should schedule time to work with Legal Department on the matter.

4. Consultation: If needed, Legal Department will consult with other C-suite leaders, outside counsel, or insurance carriers.

5. Final Approval:

5.1 Unless otherwise indicated in Sections 2 and 12 of this procedure, Legal Department will send approved contracts to YGSF signatories for final approval and execution.

6. Turnaround Time for Signature: The designated signatories will review and execute a contract within one business day of receipt, unless more time is requested.

7. Return to Originator:

7.1 Legal Department will return a contract to the staff liaison within one business day of execution.

7.2 If a contract is executed in a different order than described herein, the staff liaison shall be responsible for sending the fully executed contract to Legal Department for filing.

8. Deliverables

8.1 Reviewed Contract: A contract reviewed for risk, liability, and compliance by the Internal Attorney/Association Director of Risk and Legal.

8.2 Signed Contract: A contract signed by the designated signatory within the stipulated timeline.

9. Timeline

Task	Responsible Party	Deadline
Contract Submission	Staff Liaison	Day 0
Contract Acknowledgement	Legal Department	1 business day of receipt
Review and Initial Approval	Legal Department	5 business days after receipt of a COMPLETE contract/ICA Packet
Consultation (if needed)	Legal Department	Within review period*
Final Approval and Execution	Designated Signatory	1 business day of receipt*
Return to Staff Liaison	Designated Department	1 business day of execution

**More time may be necessary for complex agreements, signatory questions, or signatory availability.*

10. Responsibilities

10.1 Staff Liaison:

- Read contracts before submitting to Legal Department.
- Vet contractors for fitness, quality, reputation, etc.
- Negotiate simple business terms.
- Complete contract forms and templates.
- Copyedit and proofread contracts.
- Ensure timely communication with the Legal Department and contractors.
- Ensure timely submission of contracts.
- Track contract status and completion.

10.2 Business Compliance & Legal Analyst

- Advise staff liaison on appropriate contract templates and the approval process.
- Inform staff liaison of incomplete contracts or missing requirements.
- Ensure timely review of contracts.
- Obtain signatures.
- Track contract status and completion.
- Log and file contracts.

10.3 Internal Attorney/Association Director of Risk and Legal:

- Review contracts for risk, liability, and compliance.
- Consult with other C-suite leaders, outside counsel, or insurance carrier if needed.
- Advise staff liaison.
- Complete the review within 5 business days.

10.4 Designated Signatories (e.g. Association Officer, Senior Vice President of the functional area, functional Vice President, Branch Executive Director or equivalent Association Director, Facilities Executive Director):

- Read contracts.
- Provide final approval by signing contracts.
- Sign contracts within one business day of receipt, or request more time.

11. Assumptions

11.1 All necessary information and documentation will be provided along with the contract/ICA to facilitate a thorough review.

11.2 The designated signatory leader will be available to sign the contract within the stipulated timeline.

11.3 Any delays in the consultation process will be communicated promptly to all relevant parties.

12. Contract Subject, Type, Signatories, and Insurance:

Contract Subject	Contract Type	YGSF ICA Approval form	Legal Review BEFORE or AFTER Contract Execution	Contract Signed by Officer	Contract Signed by Sr. VP	Contract Signed by VP	Contract Signed by ED	Collect COI	Collect Endorsements
Alcohol Service	Use YGSF Alcohol Vendor Insurance and Indemnity Agreement Template	No	Before	Yes	Yes	No*	No*	Yes	Yes
Bus/Transportation Service	Use YGSF Bus Service Agreement Template	No	Before	Yes	Yes	No*	No*	Yes	Yes
Business Associate Agreement	Supplied by contracting party or by Legal Department	No	Before	Yes	Yes	No*	No*	Yes - if required by contract	Yes - if required by contract
Consultant Agreement (e.g. website, technology development, financial, fundraising)	Supplied by contracting party or by Legal Department	Yes - if ICA	Before	Yes	Yes	No*	No*	Yes	Yes
Exchange of Employee/Member Data	Supplied by contracting party	No	Before	Yes	Yes	No*	No*	Yes - if required by contract	Yes - if required by contract
Fiscal Sponsorship Agreement	Supplied by contracting party or by Legal Department	No	Before	Yes	Yes	No*	No*	Yes - if required by contract	Yes - if required by contract

Contract Subject	Contract Type	YGSF ICA Approval form	Legal Review BEFORE or AFTER Contract Execution	Contract Signed by Officer	Contract Signed by Sr. VP	Contract Signed by VP	Contract Signed by ED	Collect COI	Collect Endorsements
Grant Funded Contractor or Services	Use YGSF ICA or MOU contract template, if applicable	Yes - if ICA	Before	Yes	Yes	No*	No*	Yes	Yes
Legal Services	Supplied by contracting party or by Legal Department	Yes - if ICA	Before	Yes	Yes	No*	No*	Yes - if required by contract	Yes - if required by contract
New Independent Contractor (professional or youth)	Use YGSF ICA Template	Yes	Before	Yes	Yes	No*	No*	Yes	Yes
PII or HIPPA related contract	Supplied by contracting party or by Legal Department	No	Before	Yes	Yes	No*	No*	Yes - if required by contract	Yes - if required by contract
Professional Services (from a professionally licensed provider)	Use YGSF Professional Service ICA	Yes	Before	Yes	Yes	No*	No*	Yes	Yes
Property Lease, License, or other Rental Agreement (excluding equipment rental, YGSF Facility Use, and User Group Agreements)	Supplied by contracting party	No	Before	Yes	Yes	No*	No*	Yes - if required by contract	Yes - if required by contract
School District Service Agreement or MOU	Supplied by contracting party	No	Before - one time per school year, and whenever District changes the terms	Yes	Yes	No*	No*	Yes - if required by contract	Yes - if required by contract
Software as a Service Agreement (SAAS)	Supplied by contracting party	No	Before	Yes	Yes	No*	No*	Yes - if required by contract	Yes - if required by contract
Unique/Novel Program or Services	Use YGSF ICA or MOU contract template, if applicable	Yes - if ICA	Before	Yes	Yes	No*	No*	Yes	Yes
Youth Program Services	Use YGSF ICA Template	Yes	Before	Yes	Yes	No*	No*	Yes	Yes

Contract Subject	Contract Type	YGSF ICA Approval form	Legal Review BEFORE or AFTER Contract Execution	Contract Signed by Officer	Contract Signed by Sr. VP	Contract Signed by VP	Contract Signed by ED	Collect COI	Collect Endorsements
Bounce House, Stage, Tent or similar equipment (that could harm staff/participants if improperly set-up)	Use YGSF Insurance and Indemnity Agreement Template	No	Before	No	Yes	Yes	No*	Yes	Yes
Health Screening, Medical Service, or Blood Bank	Use YGSF Contract Template	No	Before	No	Yes	Yes	No*	Yes	Yes
Internship, Affiliation, or Placement Agreement	Supplied by contracting party or by Legal Department	No	Before	No	Yes	Yes	No*	Yes - if required by contract	Yes - if required by contract
Photographer	Use YGSF ICA Template	Yes	Before	No	Yes	Yes	No*	Yes	Yes
Security Service	Supplied by contracting party or by Legal Department	Yes - if ICA	Before	No	Yes	Yes	No*	Yes - if required by contract	Yes - if required by contract
Staffing Service	Supplied by contracting party	No	Before	No	Yes	Yes	No*	Yes - if required by contract	Yes - if required by contract

Contract Subject	Contract Type	YGSF ICA Approval form	Legal Review BEFORE or AFTER Contract	Contract Signed by Officer	Contract Signed by Sr. VP (or VP if no SVP)	Contract Signed by VP	Contract Signed by ED	Collect COI	Collect Endorsements
Auctioneers	Use YGSF ICA Template	Yes	After - if \$10,000 or less	No - if \$10,000 or less	Yes	No	Yes - if \$10,000 or less	Yes	Yes
Construction	Use YGSF Template	No	After	No - if \$10,000 or less	Yes	Yes - if \$10,000 or less	Yes - if \$10,000 or less	Yes	Yes
Equipment or Furniture Rental	Supplied by contracting party	No	After - if \$10,000 or less	No - if \$10,000 or less	Yes	No	Yes - if \$10,000 or less	No	No
Event Production	Use YGSF ICA Template	Yes	After	No - if \$10,000 or less	Yes	No	Yes - if \$10,000 or less	Yes	Yes
Food Service (more than mere food delivery, e.g. catering set up, food service by catering staff)	If \$10,000 or less, contract can be provided by contracting party. \$10,001 or more, use YGSF ICA Template	No	After - if \$10,000 or less	No - if \$10,000 or less	Yes	No	Yes - if \$10,000 or less	No - if \$10,000 or less	No - if \$10,000 or less
Grant Agreement	Supplied by Grantor	No	After	No - if \$10,000 or less	Yes	No	Yes - if \$10,000 or less	Yes - if required by contract	Yes - if required by contract
Hotel, Conference, Venue Rental	Supplied by contracting party	No	After	No - if \$10,000 or less	Yes	No	Yes - if \$10,000 or less	Yes - if required by contract	Yes - if required by contract
Maintenance Agreement	Supplied by contracting party	No	After	No - if \$10,000 or less	Yes	Yes - if \$10,000 or less	Yes - if \$10,000 or less	Yes	Yes
Musicians, DJs, Entertainers, Emcees	Use YGSF ICA Template	Yes	After - if \$10,000 or less	No - if \$10,000 or less	Yes	No	Yes - if \$10,000 or less	No	No
PTA Agreement for Enrichment or Linked Day Program	Use YGSF MOU Template	No	After - if District staff have no contact with students	No - if \$10,000 or less	Yes	No	Yes - if \$10,000 or less	Yes - if required by contract	Yes - if required by contract
Staff Training	Use YGSF ICA Template	Yes	After	No - if \$10,000 or less	Yes	No	Yes - if \$10,000 or less	Yes	Yes
Workforce Development	Use YGSF Template	No	After	No - if \$10,000 or less	Yes	No	Yes - if \$10,000 or less	Yes - if required by contract	Yes - if required by contract